

The Pepsu Representation on the Executive Committee of Sikh Gurdwaras Board (Conduct of Elections) Rules, 1959

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Rule

THE-PEPSU-REPRESENTATION-ON-THE-EXECUTIVE-COMMITTEE-OF-SIKH-GURDWARAS-BOARD-CONDUCT-OF-ELECTIONS-RULES-1959 of 1959

Published on 18 February 1959

Commenced on 18 February 1959

[This is the version of this document from 18 February 1959.]

[Note: The original publication document is not available and this content could not be verified.]

The Pepsu Representation on the Executive Committee of Sikh Gurdwaras Board (Conduct of Elections) Rules, 1959

Published vide Punjab Government, Home Department (General Gurdwaras), Notification No. 319-Gurdwaras, dated the 18th February, 1959.

1104.

1.

Short title.

- These rules may be called the PEPSU Representation on the Executive Committee of Sikh Gurdwaras Board

(Conduct of Elections) Rules, 1959.

2.

In these rules -

(i)

`Act' means the Sikh Gurdwaras Act, 1925, as amended from time to time: and

(ii)

`Board' and `extended territories' shall have the same meaning as are respectively assigned to them in the Act.

3.

Deputy Commissioner to function as Chairman.

- The Deputy Commissioner Patiala, shall function as Chairman of the meeting of the members of the Board belonging to the extended territories, called by him at Patiala, to elect four persons to be the members of the Executive Committee of the Board, in pursuance of sub-section (4) of section 148-B of the Act.

4.

Nomination of candidates for the Executive Committee

- The Chairman shall call upon the members present to nominate candidates for the election of four members of the Executive Committee of the Board and any member present may propose the name of any member of the Board belonging to the extended territories as a candidate for election and if any other member present seconds such proposal and the member so nominated signifies his assent to such nomination, or has already signified his assent, in writing, the Chairman shall enter the name of the member so nominated in a list of nominated candidates.

5.

If number of candidates is equal to the numbers of members to be elected such candidates to be declared elected.

- If the number of candidates nominated under the provisions of rule 4 is four, such candidates shall be deemed and shall be declared to have been elected as members of the Executive Committee.

6.

Method of voting.

- If more than four members are duly nominated as candidates under the provisions of rule 4, the Chairman shall read out the list of nominated candidates and each member present at the meeting may write on a paper the name of any one candidate whom he wishes to be elected and shall then fold up the paper and place it in a receptacle provided for the purpose :

Provided that if any member is unable to write, he may cause any other member to write on his behalf the name of the candidate whom he wishes to be elected.

7.

Counting of votes.

(1)

When all the members present, who wish to vote, have recorded their votes in the manner prescribed in rule 6, the Chairman shall appoint two gazetted officers (hereinafter referred to as tellers) to count the votes recorded for each candidate.

(2)

In counting the votes the tellers shall reject as invalid any paper on which the name of more than one candidate is written or any indication is given to the identity of the member whose vote is recorded on it other than such indication as is afforded by the writing of the name of the candidate.

(3)

When counting of the votes is concluded, the tellers shall prepare and sign a return showing the number of votes recorded in favour of each candidate and shall deliver the return to the Chairman.

(4)

The Chairman shall declare to be elected the four candidates in whose favour the largest number of votes is shown in the return to have been recorded;

Provided that if it is impossible to determine which candidates have obtained the largest number of votes up to the number of members to be elected owing to the fact that two or more candidates have obtained an equal number of votes, the Chairman shall decide by lot which of such candidates shall be deemed to have been elected :

8.

Return of result of election and election papers to be forwarded to Government.

- At the conclusion of election of the four members of the Executive Committee of the Board, the Chairman shall forward to the Home Secretary to Government, Punjab a return showing the names of the persons elected, together with a sealed packet containing the list of duly nominated candidates prepared under the provisions of rule 4, the return prepared by the tellers under the provisions of sub-rule (3) of rule 7 and the papers on which votes were recorded under the provisions of rule 6, and such packet shall be retained by the Home Secretary to Government, Punjab, in his custody until the expiry of one year from the date of election when its contents shall be destroyed subject to any direction to the contrary made by the Punjab Government or by a competent court or by an Enquiry Board appointed to hold an enquiry into an election under these rules.

9.

Result of election to be notified in Official Gazette.

- As soon as may be, after the receipt of the return of election referred to in rule 8, the Home Secretary to Government, Punjab shall notify the names of the members elected in the Official Gazette, for general information.

10.

Application of Sikh Gurdwaras Election Enquiries Rules 1925.

- The Sikh Gurdwaras Election Enquiries Rules, 1925, as amended from time to time, shall apply mutatis mutandis to the conduct of enquiries and the decision of disputes relating to the election held in accordance with these rules and any reference, in those rules to the Sikh Gurdwaras Board (Election of Office Bearers and Executive Committee) Rules, 1925, shall be deemed to be relating to these rules. Further, any reference in the former rules to the Deputy Commissioner, Amritsar, shall be deemed to be relating to the Deputy Commissioner, Patiala.

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